SECURITYIRELANDPOLICYBRIEF

The Protest Spectrum

Blockades Are Not Thuggery. But They're Not All the Same Either.

European human rights law distinguishes four levels of protest activity, each with a different legal status and a different proportionate response. Ireland's government has collapsed all four levels into one — treating peaceful rallies, civil disobedience, infrastructure obstruction, and violence as a single category and responding with the most extreme tools available. This brief sets out what the law actually requires and how every comparable EU state has handled identical protests differently.

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Figure 1: The protest spectrum. European human rights law distinguishes four levels of protest activity. Each has a different legal status and requires a different proportionate response. Ireland treated the entire spectrum as Level 4 and responded with military deployment, pepper spray, and threatening rhetoric.

What the law actually says

The right to peaceful assembly is fundamental. Article 11 of the European Convention on Human Rights and Article 12 of the EU Charter of Fundamental Rights protect the right to peaceful assembly. This is not a concession from the state, it is a fundamental right that the state is obligated to protect and facilitate.

Civil disobedience is protected. The European Parliament's 2019 Resolution on the Right to Peaceful Protest explicitly recognises that peaceful civil disobedience — the deliberate, nonviolent breaking of the law for reasons of conscience — is protected under the right of peaceful assembly. Amnesty International's 2024 report on 21 European countries confirms this: 'Disruption should generally be tolerated as inherent in protesting.' Road blockades, sit-ins, and slow-moving convoys are disruptive. They are not violent. They are protected.

Infrastructure obstruction is more complex but still subject to proportionality. Blocking a refinery or fuel depot is more serious than blocking a road, and the state has legitimate grounds to act when critical infrastructure is obstructed and essential services are threatened. But under European Court of Human Rights case law, any restriction

must satisfy three tests: (1) Legality: is there a clear legal basis? (2) Necessity: is the restriction necessary in a democratic society? (3) Proportionality: is the response the least restrictive means available?

Deploying the military is not the least restrictive means when negotiation, court injunctions, and specialist police units have not been tried.

Even criminal conduct requires proportionate response. If protesters damage property or use violence, the state has full enforcement powers. But Human Rights Watch, the UN Basic Principles on Use of Force, and the European Parliament have all affirmed that even in enforcement, the response must be proportionate. Penalties must not be used to 'silence dissent or deter individuals from exercising their right to protest.' Threatening to strip farmers' insurance and prosecute them is a penalty designed to deter future protest, not to address a specific criminal act.

What Ireland did wrong

No distinction between protest levels. The government treated peaceful rallies on O'Connell Street, tractor convoys on the M50, and fuel depot blockades at Whitegate as a single phenomenon requiring a single response. Each is a different activity with a different legal status requiring a different proportionate response. The failure to distinguish is the first error.

Escalation without graduated response. Ireland moved directly from routine policing to military deployment and pepper spray without exhausting intermediate options. No specialist public order units were deployed (because they don't exist). No court injunctions were sought against depot blockaders. No negotiation was attempted with protest organisers (despite identifiable leaders). The government skipped every intermediate step because the institutional architecture for intermediate steps does not exist.

Language designed to criminalise rather than de-escalate. 'National sabotage.' 'Illegal activity endangering the State.' 'Should not complain about damage.' Threatening prosecution and insurance stripping. This language treats economic protesters as enemies of the state rather than citizens exercising — in disruptive but largely nonviolent form — their fundamental rights. In every comparable EU case, government language was calibrated to de-escalate, not inflame.

No negotiation. The refusal to engage directly with the people actually blockading infrastructure — while simultaneously deploying military force against them — is the response of a state with no institutional channel for managing unstructured grievance. France met Gilets Jaunes representatives within weeks and offered concessions. The Netherlands met farmer representatives and entered dialogue. Spain negotiated a fuel price package with truckers. Ireland's refusal to negotiate is not a principled stance against 'negotiating under duress.' It is a state without institutional channels for managing legitimate grievance discovering that the only alternative to dialogue is force.

What proportionate response looks like in practice

The French Gilets Jaunes movement of 2018–19 is the closest parallel to Ireland's fuel protests: fuel price grievance, road blockades, depot obstruction, rural and working-class base, escalation over time. France got things wrong too — excessive force was used at some Paris demonstrations. But the institutional architecture for graduated response existed and was applied.

Week 1 (17–23 November 2018). Roundabout blockades began nationwide. Approximately 290,000 protesters. Response: local police facilitated. CRS deployed to manage traffic flow at key junctions. No military, no pepper spray at blockade sites. Government acknowledged the grievance publicly. President Macron stated the anger was 'legitimate.'

Week 2–3 (24 November–8 December). Protests escalated. Paris demonstrations turned violent. Fuel depots blocked in multiple regions. Response: CRS and Gendarmerie Mobile managed Paris protests (with well-documented failures of proportionality that were later investigated). At fuel depots, Gendarmerie negotiated with blockaders. Some depots cleared by court order executed by Gendarmerie — not military. Government opened dialogue channels with regional representatives.

Week 4 (10 December). Macron addressed the nation. Announced €10 billion package: cancellation of the fuel tax increase, minimum wage increase, tax relief for pensioners, overtime tax exemption. The concessions were substantial and directly addressed the stated grievance. The political cost was high, and the institutional crisis ended.

Throughout: the military was never deployed against Gilets Jaunes protesters. Not at roundabouts, not at fuel depots, not in Paris. The CRS (13,000 personnel) and Gendarmerie Mobile (12,800 personnel) provided the intermediate capability. Court orders provided the legal mechanism for clearing depots. Negotiation and concession provided the political resolution. France had institutional architecture for every stage of the crisis. Ireland has architecture for none of it.

The comparison is not about France being better at policing. French police were criticised for excessive force at several Paris demonstrations, and rightly so. The comparison is about institutional layers. France had specialist public order forces, a legal mechanism for infrastructure clearance that didn't require military involvement, channels for negotiation, and a political culture that accepted concession as a legitimate response to legitimate grievance. Ireland had the Gardaí, the Defence Forces, pepper spray, and a minister telling people not to complain about property damage.

The cost of getting it wrong

The government's disproportionate response has not resolved the crisis, it has transformed it. What began as a fuel price protest by farmers and hauliers has become something far more dangerous because the state's response created the conditions for escalation.

Far-right capture. Conor McGregor called for 250,000 people to descend on Dublin and for the government to 'step down.' Tommy Robinson has reshared the content. Ezra Levant of Rebel News has flown in from Canada. Gript Media is amplifying. The framing has shifted from 'farmers angry about diesel' to 'globalist regime crushing patriots.' This did not happen because the protesters are far-right, it happened because the government's refusal to negotiate, combined with military deployment and threatening rhetoric, created a narrative vacuum that international actors filled.

Legitimacy crisis. Sinn Féin has called a motion of no confidence. Aontú has called for a joint opposition motion. Public sympathy — initially divided — has shifted toward the protesters as images of pepper spray and soldiers circulated. The government's approval ratings are falling in real time. A fuel price dispute that could have been resolved with a package and a meeting has become a question of whether the government can survive.

International exposure. The protests are the second item on US NPR. International media — from the BBC to Fox News to Al Jazeera — are covering Ireland deploying its military against farmers. Three months before the EU Presidency, Ireland is demonstrating to 27 member states that it cannot manage a domestic crisis without soldiers. This is the opposite of the institutional credibility the Presidency requires.

Precedent. The military has been deployed against civilian economic protest for the first time since the foundation of the state. The threshold for future deployment is now lower. The next protest movement — housing, water charges, climate, whatever comes next — has a reference point. And the far-right has learned that Ireland's institutional weakness can be exploited: provoke a crisis, wait for the state to overreact, fill the narrative vacuum.

The Presidency. Ireland assumes the EU Council chair in July. It will lead discussions on defence, security, critical infrastructure resilience, and the democratic governance of the security sector. The images from this week — soldiers at refineries, pepper spray on farmers, a minister threatening citizens' insurance — will be in the briefing folders of every delegation that arrives in Dublin. The credibility cost is not abstract. It is concrete, immediate, and will define how 27 member states assess Ireland's fitness to chair their security discussions.

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